

Instruction No. 05/2024-Customs**F.No.401/32/2024-Cus.III**

Government of India
Ministry of Finance
Department of Revenue
(Central Board of Indirect Taxes & Customs)

Room No. 229A, North Block, New Delhi
Dated, 14th Mar 2024

To

All Principal Chief Commissioners/ Chief Commissioners of Customs/ Customs (Preventive)/ Customs & Central Tax.

All Principal Commissioners (Customs)/Customs (Preventive)

All Pr. Director/ Director Generals under CBIC

Subject: - Prohibition for import of ferocious breeds of dog-reg

Madam/Sir,

Reference is invited to OM F.No. L-11010(1)/251/2021-Trade (E-20671) dated 12.03.2024 received from DC (Trade), Deptt. of Animal Husbandry and Dairying (DAHD) enclosing therein D.O. letter No. D.O. V-11/1/2024-Anlm-Dadf dated 12.03.2024 of the Joint Secretary, Deptt. of Animal Husbandry and Dairying, Ministry of Fisheries, Animal Husbandry and Dairying on the subject matter. (copies enclosed) .

2. It has been informed that following breeds of dogs have been identified as ferocious which are dangerous for human life and shall be prohibited for import, breeding, selling as pet dogs and other purposes:

"breeds (including mixed and cross breeds) like Pitbull Terrier, Tosa Inu,, American Staffordshire Terrier, Fila Brasileiro. Dogo Argentino, American Bulldog, Boerboel, Kangal, Central Asian Shepherd Dog (ovcharka), Caucasian Shepherd Dog (ovcharka), South Russian Shepherd Dog (ovcharka), Tornjak, Sarplaninac, Japanese Tosa and Akita, Mastiffs (boerbulls), Rottweiler, Terriers, Rhodesian Ridgeback, Wolf dogs, Canario, Akbash dog, Moscow Guard dog, Cane corso and every dog of the type commonly known as a Ban Dog (or Bandog)"

3. It is requested that necessary action may be taken to sensitize officers under your jurisdiction with respect to ban on import of above breeds of dogs.

4. The difficulties, if any, in the implementation of this instruction may be brought to the notice of the Board.

5. Hindi version follows.

Encls: As above

Signed by Radhe Krishna
Date: 15-03-2024 15:28:26

Yours faithfully,

Radhe Krishna
Under Secretary (Cus-III)
Email: uscus.3-dor@gov.in
Tele: 011 23094012

File No. L-110102(1)/251/2021-Trade (E-20671)

भारत सरकार

Government of India

मत्स्य पालन, पशुपालन और डेयरी मंत्रालय

Ministry of Fisheries, Animal Husbandry and Dairying

पशुपालन और डेयरी विभाग

Department of Animal Husbandry and Dairying

कृषि भवन, नई दिल्ली -110 001,

Krishi Bhawan, New Delhi-110 001,

दिनांक / Dated the 12th March, 2024.

OFFICE MEMORANDUM

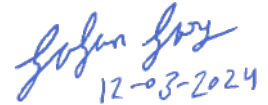
Subject: Prohibition for import of ferocious breeds of dog- reg.

The undersigned is directed to enclose herewith a D.O. letter No. V-11/1/2024-Anlm_Dadf, dated 12th March, 2024 from Dr. O.P. Chaudhary, Joint Secretary, Department of Animal Husbandry and Dairying, Ministry of Fisheries, Animal Husbandry and Dairying, which is self-explanatory.

2. Further, the import of ferocious breeds including cross breeds of dog as specified in para 2 and 3 of enclosed D.O. letter has been prohibited, among others.

3. This issues with the approval of the competent authority.

Encl: As above.


12-03-2024

(डॉ गगन गर्ग)

(Dr. Gagan Garg)

उप-आयुक्त (व्यापार)

Deputy Commissioner (Trade)

Distribution:

- 1) Secretary, Department of Commerce, Vanijya Bhawan, New Delhi.
- 2) Director General, Directorate General of Foreign Trade, Vanijya Bhawan, New Delhi.
- 3) Joint Secretary (Customs), Central Board of Indirect Taxes & Customs, Department of Revenue, North Block, New Delhi.
- 4) All Regional Officers / Quarantine Officers, Animal Quarantine Certification Services, Delhi / Mumbai / Bengaluru / Chennai / Kolkata / Hyderabad.

Copy also for kind information to;

- 1) Sr. PPS to the Secretary, DAHD.
- 2) PPS / PS to the AS (VJ) / AHC / JS (OPC) / JS (GNS) / JS (SC) / JS (SSP).

डॉ. ओ.पी. चौधरी
Dr. O.P. Chaudhary



सत्यमेव जयते

आज़ादी का
अमृत महोत्सव

संयुक्त सचिव

भारत सरकार

मत्स्यपालन, पशुपालन एवं डेयरी मंत्रालय

पशुपालन एवं डेयरी विभाग

कृषि भवन, नई दिल्ली-110001

Joint Secretary

Government of India

Ministry of Fisheries, Animal Husbandry & Dairying

Department of Animal Husbandry and Dairying

Krishi Bhawan, New Delhi-110001

D.O. V-11/1/2024-Anlm_Dadf

Dated, 12th March, 2024

Sir,

I would like to draw your kind attention on the serious recent issues of death of human being due to dog bites by some ferocious breeds of dogs kept as pet. The Department of Animal Husbandry and Dairying, Government of India has been receiving representation from various citizens, citizen forum and Animal Welfare Organization etc. to ban some of the breeds of dogs to keep them as pet and other purpose. Further, a Writ Petition No. 15673/2023 titled as "The Legal Attorneys & Barristers Law Firm vs UOI & Ors" filed before the Hon'ble High Court of Delhi to ban some of the dog breeds. The Hon'ble Court in its order dated 06.12.2023 directed "*that after consulting all stakeholders, the UOI shall decide petitioner's representation dated 05.10.2023 as expeditiously as possible, preferably, within 3 months from today*".

2. The Department of Animal Husbandry and Dairying constituted an Expert Committee under the Chairmanship of Animal husbandry Commissioner with members from the various stakeholder organizations and experts. The Committee has identified the following breeds of dogs as ferocious which are dangerous for human life.

"breeds(including mixed and cross breeds) like Pitbull Terrier, Tosa Inu, American Staffordshire Terrier, Fila Brasileiro, Dogo Argentino, American Bulldog, Boerboel, Kangal, Central Asian Shepherd Dog (ovcharka), Caucasian Shepherd Dog (ovcharka), South Russian Shepherd Dog (ovcharka), Tornjak, Sarplaninac, Japanese Tosa and Akita, Mastiffs (boerbulls), Rottweiler, Terriers, Rhodesian Ridgeback, Wolf dogs, Canario, Akbash dog, Moscow Guard dog, Cane corso and every dog of the type commonly known as a Ban Dog (or Bandog)"

3. The Committee has recommended that the aforementioned dog breeds including cross breeds shall be prohibited for import, breeding, selling as pet dogs and other purposes. Therefore, it is requested that the local bodies, Department of Animal Husbandry shall not issue any licenses or permit for sale, breeding of dogs breeds as mentioned above and keeping of these dog breeds and shall be banned. The Local Bodies may also issue necessary implementation guidelines in this regard. However, the dogs which have already kept as a pet shall be sterilized so that further breeding may not happen.

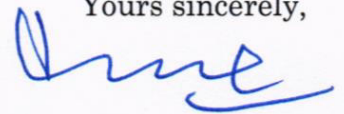
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4. I would further like to inform that the Central Government has published Prevention of Cruelty to Animal (Dog breeding and marketing) Rules, 2017 and Prevention of Cruelty to Animal (Pet Shop) Rules, 2018. The Implementation of the Rules is vested on the Local Bodies and State Animal Welfare Board as well as Department of Animal Husbandry Department. It is requested to direct the concerned authorities to implement the aforementioned Rules.

With regards,

Yours sincerely,



(Dr. O. P. Chaudhary)

To,

1. The Chief Secretaries of All the States and Union Territories.